



ACA International et al v. Fulford, Docket No. 1:25-cv-03530 (D. Colo. Nov 05, 2025), Court Docket

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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:25-cv-03530-RBJ

ACA International et al v. Fulford

Date Filed:	Nov 5, 2025
Nature of suit:	890 Other Statutory Actions
Assigned to:	Judge R. Brooke Jackson
Cause:	15:1681 Fair Credit Reporting Act
Jurisdiction:	Federal Question
Jury demand:	None

Parties and Attorneys

Plaintiff	ACA International	
Representation	Adam Eric Lyons <i>Brownstein Hyatt Farber Schreck LLP</i> 675 15th Street Suite 2900 Denver, CO 80202 (303) 223-1251 alyons@bhfs.com ATTORNEY TO BE NOTICED	Sarah J. Auchterlonie <i>Brownstein Hyatt Farber Schreck LLP</i> 675 15th Street Suite 2900 Denver, CO 80202 (303) 223-1228 sja@bhfs.com ATTORNEY TO BE NOTICED

Plaintiff	Fresno Credit Bureau doing business as: Creditors Bureau USA	
Representation	Adam Eric Lyons (See above for address)	Sarah J. Auchterlonie (See above for address)

ATTORNEY TO BE NOTICED ATTORNEY TO BE NOTICED

Defendant	Martha Fulford Administrator of the Uniform Consumer Credit Code, in her official capacity	
Representation	Kevin James Burns <i>Colorado Attorney General's Office</i> Ralph L. Carr Colorado Judicial Center 1300 Broadway Denver, CO 80203 (720) 508-6000 Kevin.Burns@coag.gov ATTORNEY TO BE NOTICED	Talia Boxerman Kraemer <i>Colorado Department of Law</i> 1300 Broadway Denver, CO 80203 (646) 342-9201 talía.kraemer@coag.gov ATTORNEY TO BE NOTICED

Defendant	CO Atty General Phillip Weiser
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Docket Entries

Numbers shown are court assigned numbers.

Entry #	Filing Date	Description
1	Nov 5, 2025	COMPLAINT against Administrator of the Uniform Consumer Credit Code, Martha Fulford (Filing fee \$ 405,Receipt Number ACODC-10648055)Attorney Sarah J. Auchterlonie added to party ACA International(pty:pla), Attorney Sarah J. Auchterlonie added to party Fresno Credit Bureau(pty:pla), filed by ACA International, Fresno Credit Bureau. (Attachments: # 1 Civil Cover Sheet, # 2 Summons)(Auchterlonie, Sarah) (Entered: 11/05/2025)
2	Nov 5, 2025	Case assigned to Magistrate Judge N. Reid Neureiter. Text Only Entry (eguth,) (Entered: 11/05/2025)
3	Nov 5, 2025	SUMMONS issued by Clerk. (Attachments: # 1 Magistrate Judge Consent Form) (eguth,) (Entered: 11/05/2025)
4	Nov 5, 2025	CORPORATE DISCLOSURE STATEMENT. (Auchterlonie, Sarah) (Entered: 11/05/2025)
5	Nov 5, 2025	ORDER SETTING SCHEDULING/PLANNING CONFERENCE AND SETTING DEADLINE FOR FILING OF CONSENT/NON-CONSENT FORM. The above-captioned case has been directly assigned to Magistrate Judge N. Reid Neureiter

Entry #	Filing Date	Description
		pursuant to D.C.COLO.LCivR 40.1(c) - Direct Assignment to Magistrate Judges. A Scheduling/Planning Conference pursuant to Fed.R.Civ.P.16(b) shall be held on: February 18, 2026 at 2:00 p.m. in Courtroom A-401, Fourth Floor, Alfred A. Arraj United States Courthouse, 901 19th Street, Denver, Colorado 80294 The Scheduling Conference will be conducted via telephone. Five minutes prior to the start of the hearing, the parties are directed to call the conference line as a participant at (571) 353-2301, Access Code 841686937#. If this date is not convenient for any counsel/pro se party, he/she should confer with opposing counsel/pro se party and file a motion to reschedule the conference to a more convenient date. Absent exceptional circumstances, no request for rescheduling any appearance in this court will be entertained unless a motion is filed no less than FIVE (5) business days in advance of the date of appearance. PLEASE READ ATTACHED ORDER. Entered by Magistrate Judge N. Reid Neureiter on 11/5/2025. (ccuen,) (Entered: 11/06/2025)
6	Nov 7, 2025	SUMMONS Returned Executed by All Plaintiffs. Martha Fulford served on 11/6/2025, answer due 11/28/2025. (Auchterlonie, Sarah) (Entered: 11/07/2025)
7	Nov 17, 2025	NOTICE of Entry of Appearance Kevin J. Burns by Kevin James Burns on behalf of Martha FulfordAttorney Kevin James Burns added to party Martha Fulford(pty:dft) (Burns, Kevin) (Entered: 11/17/2025)
8	Nov 19, 2025	STIPULATION for Extension of Time to Answer or Respond to the Complaint by Defendant Martha Fulford.. (Burns, Kevin) (Entered: 11/19/2025)
9	Nov 19, 2025	NOTICE of Entry of Appearance by Talia Boxerman Kraemer on behalf of Martha FulfordAttorney Talia Boxerman Kraemer added to party Martha Fulford(pty:dft) (Kraemer, Talia) (Entered: 11/19/2025)
10	Dec 11, 2025	CONSENT to Jurisdiction of Magistrate Judge by Defendant Martha Fulford All parties do not consent.. (Burns, Kevin) (Entered: 12/11/2025)
11	Dec 11, 2025	CASE REASSIGNED Pursuant to 10 Consent to Jurisdiction of Magistrate Judge, all parties do not consent. Case randomly reassigned to Judge R. Brooke Jackson and drawn to Magistrate Judge N. Reid Neureiter. All future pleadings should be designated as 25-cv-03530-RBJ. (Text Only Entry) (norlin,) (Entered: 12/11/2025)
12	Dec 12, 2025	Joint MOTION for Order to Vacate Response Deadline and Enter Scheduling Order by Plaintiffs ACA International, Fresno Credit Bureau. (Auchterlonie, Sarah) (Entered: 12/12/2025)
13	Dec 18, 2025	ORDER granting 12 Motion for Order by Judge R. Brooke Jackson on 12/18/25. Text Only Entry(rbj) (Entered: 12/18/2025)
14	Jan 9, 2026	NOTICE of Filing Amended Pleading First Amended Complaint by Plaintiffs ACA International, Fresno Credit Bureau (Attachments: # 1 Exhibit Redline of First Amended Complaint)(Auchterlonie, Sarah) (Entered: 01/09/2026)
15	Jan 9, 2026	AMENDED COMPLAINT First Amended Complaint against Martha Fulford, filed by ACA International, Fresno Credit Bureau.(Auchterlonie, Sarah) (Entered: 01/09/2026)
16	Feb 5, 2026	LETTER re: 15 Amended Complaint Re: Anticipated Motion to Dismiss in Part by Defendant Martha Fulford. (Kraemer, Talia) (Entered: 02/05/2026)
17	Feb 6, 2026	MINUTE ORDER. In light of the reassignment at Dkt. # 11 , the Scheduling Conference set for February 18, 2026 at 2:00 p.m. before Magistrate Judge Neureiter

Entry #	Filing Date	Description
		is VACATED. By Magistrate Judge N. Reid Neureiter on February 6, 2026. Text Only Entry. (rvill,) (Entered: 02/06/2026)
18	Feb 10, 2026	MINUTE ORDER. The parties are directed to submit a proposed scheduling order for this matter. If the defense intends to submit a motion to dismiss, the Defendant shall consult the Court's Practice Standards prior to submission. Proposed Scheduling Order due 2/24/2026. By Judge R. Brooke Jackson on 2/10/2026. Text Only Entry (rbjlc9,). (Entered: 02/10/2026)
19	Feb 12, 2026	LETTER re: 16 Letter Re: Amended Complaint by Plaintiffs ACA International, Fresno Credit Bureau. (Lyons, Adam) (Entered: 02/12/2026)
20	Feb 13, 2026	MINUTE ORDER The Court has reviewed the parties' letters, ECF Nos. 16 and 19, and finds that they raise legal issues that potentially could be decided at the motion to dismiss stage. by Judge R. Brooke Jackson on 2/13/26. Text Only Entry (rbjlc8,) (Entered: 02/13/2026)
21	Feb 17, 2026	Joint MOTION for Order to Enter Scheduling by Defendant Martha Fulford. (Kraemer, Talia) (Entered: 02/17/2026)
22	Feb 18, 2026	ORDER granting 21 Motion for Order by Judge R. Brooke Jackson on 2/18/26. Text Only Entry(rbjlc8,) (Entered: 02/18/2026)
23	Feb 24, 2026	Unopposed MOTION to Vacate 18 Minute Order, deadline to submit a proposed scheduling order, MOTION to Stay Discovery by Defendant Martha Fulford. (Burns, Kevin) (Entered: 02/24/2026)
24	Feb 25, 2026	ORDER granting 23 Motion to Vacate ; granting 23 Motion to Stay by Judge R. Brooke Jackson on 2/25/26. Text Only Entry(rbj) (Entered: 02/25/2026)
25	Mar 13, 2026	MOTION to Dismiss in Part the Amended Complaint by Defendant Martha Fulford. (Kraemer, Talia) (Entered: 03/13/2026)
26	Apr 13, 2026	Unopposed MOTION to Amend/Correct/Modify 15 Amended Complaint by Plaintiffs ACA International, Fresno Credit Bureau. (Attachments: # 1 Exhibit 1 - Redline Complaint)(Lyons, Adam) (Entered: 04/13/2026)
27	Apr 13, 2026	ORDER granting 26 Motion to Amend/Correct/Modify by Judge R. Brooke Jackson on 4/13/26. Text Only Entry(rbj) (Entered: 04/13/2026)
28	Apr 23, 2026	AMENDED COMPLAINT Second Amended Complaint against Martha Fulford, Phillip Weiser, filed by ACA International, Fresno Credit Bureau.(Auchterlonie, Sarah) (Entered: 04/23/2026)
29	Apr 23, 2026	WAIVER OF SERVICE Returned Executed by ACA International, Fresno Credit Bureau. Phillip Weiser waiver sent on 4/23/2026, answer due 6/22/2026. (Auchterlonie, Sarah) (Entered: 04/23/2026)
30	Apr 24, 2026	Joint MOTION for Extension of Time to File Answer or Otherwise Respond re 28 Amended Complaint and to Set Deadline to Respond to Second Amended Complaint by Plaintiffs ACA International, Fresno Credit Bureau. (Auchterlonie, Sarah) (Entered: 04/24/2026)